

ANTI DEFECTION LAW

FROM 1967 INSTABILITY TO → GROUNDS AND MEMBER-TYPE RULES → POLITICAL PARTY, LEGISLATURE PARTY → MERGER, DELETED SPLIT AND → PRESIDING-OFFICER PROCESS, NATURAL JUSTICE → RESIGNATION, DISQUALIFICATION AND THE

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g6 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 FROM 1967 INSTABILITY TO THE 52ND AND 91ST AMENDMENT DESIGN

FROM 1967 INSTABILITY TO THE 52ND AND 91ST AMENDMENT

ROOT QUESTION

HOW CAN PARTY-GOVERNMENT STABILITY BE PROTECTED WITHOUT EXTINGUISHING LEGISLATIVE

1967 DEFECTIONS

COMMITTEE ON DEFECTIONS

52ND AMENDMENT ACT 1985.

TENTH SCHEDULE EFFECTIVE 1 MARCH 1985.

52ND AMENDMENT

ROOT QUESTION

How can party-government stability be protected without extinguishing legislative judgment?

1967 defections → Committee on Defections → 52nd Amendment Act 1985.

Tenth Schedule effective 1 March 1985.

52ND AMENDMENT

CONSTITUTIONAL BASIS / ARTICLE

- ROOT QUESTION
- How can party-government stability be protected without extinguishing legislative judgment?
- 1967 defections → Committee on Defections → 52nd Amendment Act 1985.
- Tenth Schedule effective 1 March 1985.
- 52ND AMENDMENT

POWER / PROCEDURE

- Articles 101, 102, 190, 191 + Tenth Schedule.
- 91ST AMENDMENT split defence deleted
- ministry-size caps
- Articles 75(1B), 164(1B), 361B office disabilities.
- CURRENT PARAGRAPH MAP

CHECK / LIMIT

- 1 definitions
- 2 grounds
- 3 omitted
- 4 merger
- 5 presiding exemption

FEDERAL / RIGHTS IMPACT

- 6 decision
- 7 invalid court bar
- 8 rules.
- MUST REMEMBER: Apply the Tenth Schedule's exact member-specific grounds, merger defence
- and paragraph 5 presiding-officer exemption without reviving the deleted split.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MUST REMEMBER: Apply the Tenth Schedule's exact member-specific grounds, merger defence and paragraph 5 presiding-officer exemption without reviving the deleted split.

01

STAGE 01 GROUNDS AND MEMBER-TYPE RULES

GROUNDS AND MEMBER-TYPE RULES

PARTY MEMBER VOLUNTARILY GIVES UP MEMBERSHIP

OR VOTES/ABSTAINS CONTRARY TO DIRECTION WITHOUT PRIOR PERMISSION, UNLESS

INDEPENDENT MEMBER JOINING A POLITICAL PARTY AFTER ELECTION

NO SIX-MONTH WINDOW.

NOMINATED MEMBER MAY JOIN WITHIN SIX MONTHS FROM TAKING

JOINING AFTER THAT PERIOD

RAVI S. NAIK (1994) VOLUNTARILY GIVING UP IS WIDER

CONSTITUTIONAL BASIS / ARTICLE

PARTY MEMBER voluntarily gives up membership

OR votes/abstains contrary to direction without prior permission, unless condoned within fifteen days.

POWER / PROCEDURE

INDEPENDENT MEMBER joining a political party after election → disqualification.

No six-month window.

CHECK / LIMIT

NOMINATED MEMBER may join within six months from taking the seat

joining after that period → disqualification.

FEDERAL / RIGHTS IMPACT

Ravi S. Naik (1994) voluntarily giving up is wider than formal resignation and may be inferred from conduct.

TRAP dissenting speech alone is not automatically paragraph 2(1)(b) voting conduct.

CONSTITUTIONAL BASIS / ARTICLE

- PARTY MEMBER voluntarily gives up membership
- OR votes/abstains contrary to direction without prior permission, unless condoned within fifteen days.

POWER / PROCEDURE

- INDEPENDENT MEMBER joining a political party after election → disqualification.
- No six-month window.

CHECK / LIMIT

- NOMINATED MEMBER may join within six months from taking the seat
- joining after that period → disqualification.

FEDERAL / RIGHTS IMPACT

- Ravi S. Naik (1994) voluntarily giving up is wider than formal resignation and may be inferred from conduct.
- TRAP dissenting speech alone is not automatically paragraph 2(1)(b) voting conduct.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP dissenting speech alone is not automatically paragraph 2(1)(b) voting conduct.

02

STAGE 02 POLITICAL PARTY, LEGISLATURE PARTY AND THE EXACT WHIP TEST

POLITICAL PARTY, LEGISLATURE PARTY AND THE EXACT WHIP TEST

ORIGINAL POLITICAL PARTY PARTY TO WHICH THE MEMBER BELONGS

LEGISLATURE PARTY

HOUSE MEMBERS BELONGING TO THE SAME POLITICAL PARTY.

WHIP TEST AUTHORISED PARTY DIRECTION

VOTE OR ABSTENTION

NO PRIOR PERMISSION

NO CONDONATION WITHIN FIFTEEN DAYS.

ORIGINAL POLITICAL PARTY party to which the member belongs for Schedule purposes.

LEGISLATURE PARTY

House members belonging to the same political party.

WHIP TEST authorised party direction → vote or abstention

CONSTITUTIONAL BASIS / ARTICLE

- ORIGINAL POLITICAL PARTY party to which the member belongs for Schedule purposes.
- LEGISLATURE PARTY

POWER / PROCEDURE

- House members belonging to the same political party.
- WHIP TEST authorised party direction → vote or abstention

CHECK / LIMIT

- no prior permission → no condonation within fifteen days.
- Subhash Desai (2023) the political party, not a legislature-party faction acting alone, authorises the whip/leader for Tenth Schedule purposes.

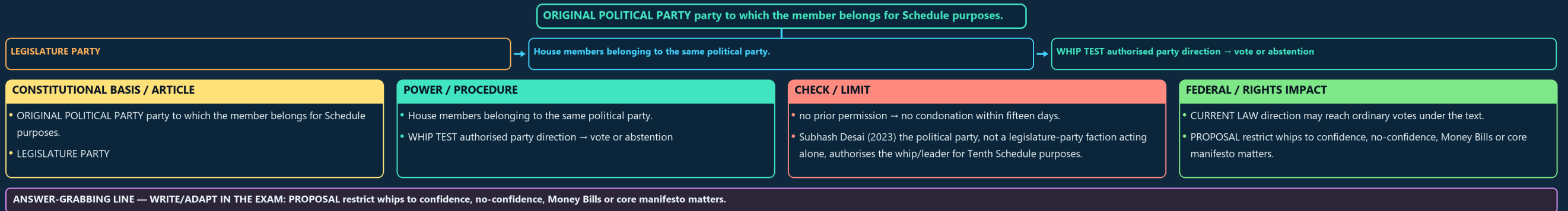
FEDERAL / RIGHTS IMPACT

- CURRENT LAW direction may reach ordinary votes under the text.
- PROPOSAL restrict whips to confidence, no-confidence, Money Bills or core manifesto matters.

02

STAGE 02 POLITICAL PARTY, LEGISLATURE PARTY AND THE EXACT WHIP TEST

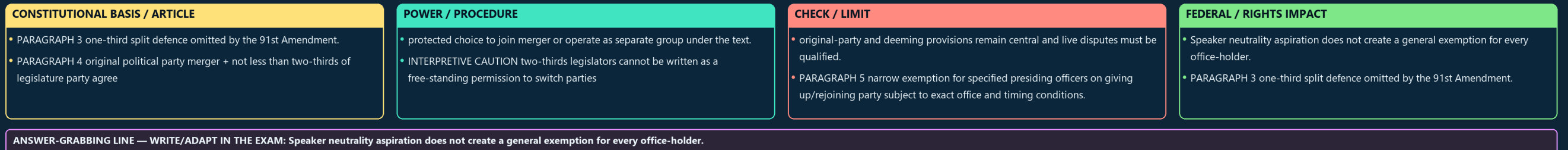
POLITICAL PARTY, LEGISLATURE PARTY AND THE EXACT WHIP TEST ORIGINAL POLITICAL PARTY PARTY TO WHICH THE MEMBER BELONGS LEGISLATURE PARTY HOUSE MEMBERS BELONGING TO THE SAME POLITICAL PARTY. WHIP TEST AUTHORISED PARTY DIRECTION VOTE OR ABSTENTION
NO PRIOR PERMISSION NO CONDONATION WITHIN FIFTEEN DAYS.



03

STAGE 03 MERGER, DELETED SPLIT AND THE NARROW PRESIDING-OFFICER EXEMPTION

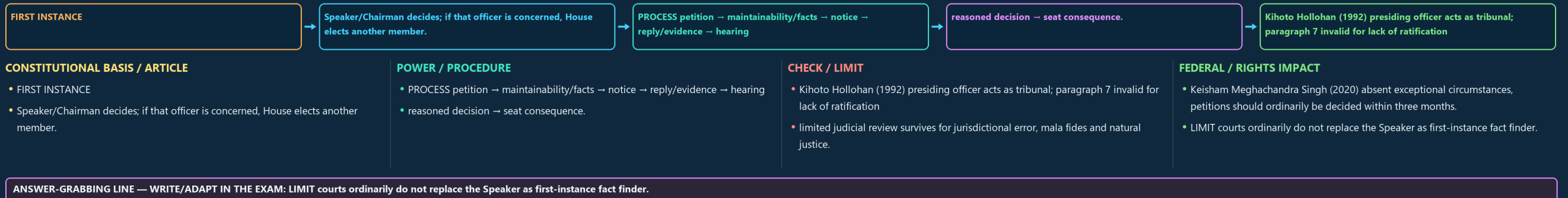
MERGER, DELETED SPLIT AND THE NARROW PRESIDING-OFFICER EXEMPTION PARAGRAPH 3 ONE-THIRD SPLIT DEFENCE OMITTED BY THE 91ST PARAGRAPH 4 ORIGINAL POLITICAL PARTY MERGER + NOT LESS PROTECTED CHOICE TO JOIN MERGER OR OPERATE AS SEPARATE
INTERPRETIVE CAUTION TWO-THIRDS LEGISLATORS CANNOT BE WRITTEN AS A ORIGINAL-PARTY AND DEEMING PROVISIONS REMAIN CENTRAL AND LIVE DISPUTES PARAGRAPH 5 NARROW EXEMPTION FOR SPECIFIED PRESIDING OFFICERS ON SPEAKER NEUTRALITY ASPIRATION DOES NOT CREATE A GENERAL EXEMPTION



04

STAGE 04 PRESIDING-OFFICER PROCESS, NATURAL JUSTICE AND JUDICIAL REVIEW

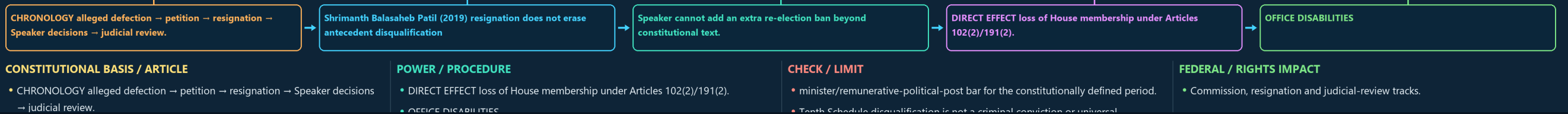
PRESIDING-OFFICER PROCESS, NATURAL JUSTICE AND JUDICIAL REVIEW FIRST INSTANCE SPEAKER/CHAIRMAN DECIDES; IF THAT OFFICER IS CONCERNED, HOUSE ELECTS PROCESS PETITION REASONED DECISION SEAT CONSEQUENCE.
KIHOTO HOLLOHAN (1992) PRESIDING OFFICER ACTS AS TRIBUNAL; PARAGRAPH LIMITED JUDICIAL REVIEW SURVIVES FOR JURISDICTIONAL ERROR, MALA FIDES



05

STAGE 05 RESIGNATION, DISQUALIFICATION AND THE 91ST-AMENDMENT OFFICE BARS

RESIGNATION, DISQUALIFICATION AND THE 91ST-AMENDMENT OFFICE BARS CHRONOLOGY ALLEGED DEFECTION SPEAKER DECISIONS JUDICIAL REVIEW. SHRIMANTH BALASAHEB PATIL (2019) RESIGNATION DOES NOT ERASE ANTECEDENT
SPEAKER CANNOT ADD AN EXTRA RE-ELECTION BAN BEYOND CONSTITUTIONAL DIRECT EFFECT LOSS OF HOUSE MEMBERSHIP UNDER ARTICLES 102(2)/191(2). OFFICE DISABILITIES



05

STAGE 05

RESIGNATION, DISQUALIFICATION AND THE 91ST-AMENDMENT OFFICE BARS

RESIGNATION, DISQUALIFICATION AND THE 91ST-AMENDMENT OFFICE BARSCHRONOLOGY ALLEGED DEFECTIONSPEAKER DECISIONSJUDICIAL REVIEW.SHRIMANTH BALASAHEB PATIL (2019) RESIGNATION DOES NOT ERASE ANTECEDENT

SPEAKER CANNOT ADD AN EXTRA RE-ELECTION BAN BEYOND CONSTITUTIONALDIRECT EFFECT LOSS OF HOUSE MEMBERSHIP UNDER ARTICLES 102(2)/191(2).OFFICE DISABILITIES

CHRONOLOGY alleged defection → petition → resignation → Speaker decisions → judicial review.

Shrimanth Balasaheb Patil (2019) resignation does not erase antecedent disqualification

Speaker cannot add an extra re-election ban beyond constitutional text.

DIRECT EFFECT loss of House membership under Articles 102(2)/191(2).

OFFICE DISABILITIES

CONSTITUTIONAL BASIS / ARTICLE

- CHRONOLOGY alleged defection → petition → resignation → Speaker decisions → judicial review.
- Shrimanth Balasaheb Patil (2019) resignation does not erase antecedent disqualification
- Speaker cannot add an extra re-election ban beyond constitutional text.

POWER / PROCEDURE

- DIRECT EFFECT loss of House membership under Articles 102(2)/191(2).
- OFFICE DISABILITIES
- Articles 75(1B), 164(1B), 361B

CHECK / LIMIT

- minister/remunerative-political-post bar for the constitutionally defined period.
- Tenth Schedule disqualification is not a criminal conviction or universal public-office ban.
- CLOSE DISTINCTION: Separate the political party, legislature party, whip, Speaker, Election

FEDERAL / RIGHTS IMPACT

- Commission, resignation and judicial-review tracks.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CLOSE DISTINCTION: Separate the political party, legislature party, whip, Speaker, Election.

06

STAGE 06

CASE-LAW CHRONOLOGY AND CONTROLLED PROPOSITIONS

CASE-LAW CHRONOLOGY AND CONTROLLED PROPOSITIONSCASE SPINEKIHOTO HOLLOHAN (1992)SCHEDULE UPHELD; PARAGRAPH 7 INVALID; REVIEW SURVIVES.RAVI S. NAIK (1994)VOLUNTARY GIVING UP MAY BE INFERRED FROM CONDUCT.G. VISWANATHAN (1996)

EXPULSION DOES NOT ERASE DEEMED PARTY BELONGING.

CASE SPINE

Kihoto Hollohan (1992) → Schedule upheld; paragraph 7 invalid; review survives.

Ravi S. Naik (1994) → voluntary giving up may be inferred from conduct.

G. Viswanathan (1996) → expulsion does not erase deemed party belonging.

Rajendra Singh Rana (2007) → inaction cannot protect an unsupported split claim.

CONSTITUTIONAL BASIS / ARTICLE

- CASE SPINE
- Kihoto Hollohan (1992) → Schedule upheld; paragraph 7 invalid; review survives.
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POWER / PROCEDURE

- G. Viswanathan (1996) → expulsion does not erase deemed party belonging.
- Rajendra Singh Rana (2007) → inaction cannot protect an unsupported split claim.
- Nabam Rebia (2016) → removal-notice restriction; correctness later referred.

CHECK / LIMIT

- Shrimanth Balasaheb Patil (2019) → resignation does not erase prior defection.
- Keisham Meghachandra Singh (2020) → ordinary three-month outer limit.
- Subhash Desai (2023) → political party authorises whip; institutional roles separated.

FEDERAL / RIGHTS IMPACT

- G. Viswanathan (1996) → expulsion does not erase deemed party belonging.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Subhash Desai (2023) → political party authorises whip; institutional roles separated.

07

STAGE 07

DELAY, JUDICIAL REMEDIES AND CURRENT DOCTRINAL CONTROL

DELAY, JUDICIAL REMEDIES AND CURRENT DOCTRINAL CONTROLTENTH SCHEDULE CONTAINS NO EXPRESS DEADLINE.JUDICIAL CONTROLKIHOTO HOLLOHAN (1992)ORDINARILY REVIEW AFTER DECISION.RAJENDRA SINGH RANA (2007)COURT MAY CORRECT DISABLING INACTION.KEISHAM MEGHACHANDRA SINGH (2020)

JUDICIAL CONTROL

Tenth Schedule contains no express deadline.

Kihoto Hollohan (1992) → ordinarily review after decision.

Rajendra Singh Rana (2007) → court may correct disabling inaction.

CONSTITUTIONAL BASIS / ARTICLE

- Tenth Schedule contains no express deadline.
- JUDICIAL CONTROL
- Kihoto Hollohan (1992) → ordinarily review after decision.
- Rajendra Singh Rana (2007) → court may correct disabling inaction.

POWER / PROCEDURE

- Keisham Meghachandra Singh (2020) → ordinarily three months from filing, absent exceptional circumstances supported by reasons.
- Telangana judgment (2025) → case-specific three-month direction.
- PENDING DOCTRINE
- Subhash Desai (2023) referred Nabam Rebia (2016) to seven judges.

CHECK / LIMIT

- No verified later merits ruling by 5 September 2026.
- TRAP constitutional silence is not unlimited delay; a judicial norm is not enacted text.
- CURRENT CASE CONTROL
- Subhash Desai (2023) remains controlling. Nabam Rebia (2016) remains referred for larger-bench reconsideration; no later merits result is asserted.

FEDERAL / RIGHTS IMPACT

- Status rechecked on 5 September 2026.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Subhash Desai (2023) remains controlling. Nabam Rebia (2016) remains referred for larger-bench reconsideration; no later merits result is asserted.

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08

STAGE 08

NABAM REBIA (2016) AND SUBHASH DESAI (2023): INSTITUTIONAL ROLES

NABAM REBIA (2016) AND SUBHASH DESAI (2023)

INSTITUTIONAL ROLES

NABAM REBIA (2016)

SPEAKER FACING A PENDING REMOVAL NOTICE WAS HELD DISABLED

PENDING QUALIFICATION

SUBHASH DESAI (2023) REFERRED CORRECTNESS OF THAT RULE TO

DO NOT WRITE NABAM REBIA (2016) AS FINALLY OVERRULED.

SUBHASH DESAI (2023) POLITICAL PARTY AUTHORISES WHIP

Nabam Rebia (2016)

Speaker facing a pending removal notice was held disabled from deciding defection petitions.

→ PENDING QUALIFICATION

→ Subhash Desai (2023) referred correctness of that rule to a seven-judge bench.

CONSTITUTIONAL BASIS / ARTICLE

- Nabam Rebia (2016)
- Speaker facing a pending removal notice was held disabled from deciding defection petitions.
- PENDING QUALIFICATION
- Subhash Desai (2023) referred correctness of that rule to a seven-judge bench.

POWER / PROCEDURE

- Do not write Nabam Rebia (2016) as finally overruled.
- Subhash Desai (2023) political party authorises whip
- Speaker determines party identity for Schedule purpose
- ECI symbol proceeding is separate

CHECK / LIMIT

- Governor cannot decide intra-party leadership.
- DISTRIBUTED ROLES
- Speaker → defection
- ECI → symbol/order field

FEDERAL / RIGHTS IMPACT

- Governor → constitutional functions
- court → review.
- TRAP floor test, symbol dispute and defection petition answer different legal questions.

MECHANISM / VERDICT — Subhash Desai (2023) referred correctness of that rule to a seven-judge bench.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP floor test, symbol dispute and defection petition answer different legal questions.

09

STAGE 09

DEMOCRATIC BALANCE, COMPARISON AND REFORM CHOICES

DEMOCRATIC BALANCE, COMPARISON AND REFORM CHOICES

GAINS REDUCES OPEN FLOOR-CROSSING

PROTECTS MANDATE

SUPPORTS GOVERNMENT STABILITY.

COSTS BROAD WHIP SUPPRESSES DELIBERATION

SPEAKER INCENTIVES

STRATEGIC DELAY MERGER ENGINEERING

RESIGNATION TACTICS

GAINS reduces open floor-crossing

protects mandate

supports government stability.

RPA → statutory grounds/procedure

privilege → House discipline symbol dispute → ECI field.

REFORM OPTIONS narrow whip

independent tribunal/ECI-advice model

statutory time limit reasoned public procedure

neutral presiding-office safeguards.

CONSTITUTIONAL BASIS / ARTICLE

- GAINS reduces open floor-crossing
- protects mandate
- supports government stability.
- COSTS broad whip suppresses deliberation
- Speaker incentives

POWER / PROCEDURE

- strategic delay merger engineering
- resignation tactics
- weakened committee scrutiny.
- Tenth Schedule → Speaker/Chairman.
- Articles 102(1)/191(1) post-election question → President/Governor on ECI opinion.

CHECK / LIMIT

- RPA → statutory grounds/procedure
- privilege → House discipline symbol dispute → ECI field.
- REFORM OPTIONS narrow whip
- independent tribunal/ECI-advice model
- statutory time limit reasoned public procedure

FEDERAL / RIGHTS IMPACT

- neutral presiding-office safeguards.
- STATUS these are proposals unless enacted or judicially ordered in a particular case.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: STATUS these are proposals unless enacted or judicially ordered in a particular case.

10

STAGE 10

VERIFIED PYQS AND EXECUTABLE ANSWER ARCHITECTURE

VERIFIED PYQS AND EXECUTABLE ANSWER ARCHITECTURE

VERIFIED PYQS

2022 PRELIMS Q16

NOMINATED-MEMBER WINDOW + NO EXPRESS DECISION TIME-FRAME; ANSWER B.

2025 PRELIMS Q88

SPEAKER/CHAIRMAN DECIDER + POLITICAL PARTY APPEARS; ANSWER D.

2023 GS-II Q5

STATE PRESIDING OFFICERS, IMPARTIALITY AND BEST DEMOCRATIC PRACTICES.

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

- GAINS reduces open floor-crossing
- protects mandate
- supports government stability.
- COSTS broad whip suppresses deliberation
- Speaker incentives

- strategic delay merger engineering
- resignation tactics
- weakened committee scrutiny.
- Tenth Schedule → Speaker/Chairman.
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- privilege → House discipline symbol dispute → ECI field.
- REFORM OPTIONS narrow whip
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- STATUS these are proposals unless enacted or judicially ordered in a particular case.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: STATUS these are proposals unless enacted or judicially ordered in a particular case.

10

STAGE 10

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VERIFIED PYQS AND EXECUTABLE ANSWER ARCHITECTURE

VERIFIED PYQS

2022 PRELIMS Q16

NOMINATED-MEMBER WINDOW + NO EXPRESS DECISION TIME-FRAME; ANSWER B.

2025 PRELIMS Q88

SPEAKER/CHAIRMAN DECIDER + POLITICAL PARTY APPEARS; ANSWER D.

2023 GS-II Q5

STATE PRESIDING OFFICERS, IMPARTIALITY AND BEST DEMOCRATIC PRACTICES.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
VERIFIED PYQS	2025 Prelims Q88 → Speaker/Chairman decider + political party appears; answer D.	PRELIMS FILTER member type → conduct → period → threshold → decider → review.	judicial review and delay → resignation/office bars → evaluation → reform.
2022 Prelims Q16 → nominated-member window + no express decision time-frame; answer B.	2023 GS-II Q5 → State presiding officers, impartiality and best democratic practices.	MAINS SPINE history → paragraph 2 grounds → paragraph 4 defence → paragraph 6 process	COMPRESSION retain exact text + one controlling case + mechanism + qualification + verdict.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• VERIFIED PYQS • 2022 Prelims Q16 → nominated-member window + no express decision time-frame; answer B.	• 2025 Prelims Q88 → Speaker/Chairman decider + political party appears; answer D. • 2023 GS-II Q5 → State presiding officers, impartiality and best democratic practices.	• PRELIMS FILTER member type → conduct → period → threshold → decider → review. • MAINS SPINE history → paragraph 2 grounds → paragraph 4 defence → paragraph 6 process	• judicial review and delay → resignation/office bars → evaluation → reform. • COMPRESSION retain exact text + one controlling case + mechanism + qualification + verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: COMPRESSION retain exact text + one controlling case + mechanism + qualification + verdict.

11

STAGE 11

UPSC TRAPS, VERIFIED PYQS AND QUALIFIED ANSWER SYNTHESIS

UPSC TRAPS, VERIFIED PYQS AND QUALIFIED ANSWER SYNTHESIS

PRELIMS FIREWALL

52ND CREATED

91ST TIGHTENED

SPLIT DELETED

MERGER TWO-THIRDS GIVING UP WIDER THAN RESIGNATION

INDEPENDENT NO WINDOW NOMINATED SIX MONTHS

CONDONATION FIFTEEN DAYS

PRELIMS FIREWALL → 52nd created → 91st tightened → split deleted → merger two-thirds giving up wider than resignation

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• PRELIMS FIREWALL • 52nd created • 91st tightened • split deleted • merger two-thirds giving up wider than resignation	• condonation fifteen days • Speaker first • judicial review survives • defection not crime. • VERIFIED ROUTES	• 2025 Prelims → political-party and Tenth Schedule distinction. • 2023 GS-II supporting route → presiding-officer impartiality. • MAINS SPINE history → grounds/member types → party/whip • merger → process/review/delay → resignation/office bars • institutional conflicts → stability-freedom balance → bounded reform.	• LEGAL/SOURCE LIMIT: Subhash Desai (2023) remains controlling • the Nabam Rebia (2016) reconsideration remains unresolved in the official Supreme Court material located through 5 • September 2026.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT stability needs discipline, but democratic legitimacy needs a narrower whip, neutral adjudication and enforceable decision time.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

EXCEPTIONS (ONLY ONE SURVIVES)

UPSC TRAPS

CA HOOKS

MAINS ANGLES

52ND AMENDMENT ACT, 1985 ADDED THE TENTH SCHEDULE (AMENDING

91ST AMENDMENT ACT, 2003 DELETED THE "SPLIT" EXCEPTION (WHICH

MERGER — WHERE THE ORIGINAL POLITICAL PARTY MERGES AND

OPTIONAL DOCTRINE / CASE	ADVANCED LIMIT	COMPARATIVE NUANCE
• Exceptions (only ONE survives) • UPSC Traps • CA hooks • Mains angles	• 52nd Amendment Act, 1985 added the Tenth Schedule (amending Arts 101, 102, 190, 191) — the • 91st Amendment Act, 2003 deleted the "split" exception (which had protected 1/3-strength splits). • Merger — where the original political party merges and not less than 2/3 of the legislature party agree, engaging paragraph 4's deeming rule; • Presiding officer who gives up party membership on taking office (dignity of the chair).	• NOT: The "split" exception (1/3 members) was REMOVED by the 91st Amendment (2003) — so only merger remains. • Decided by the Presiding Officer (Speaker/Chairman) of the House. • Kihoto Hollohan (1992) v. Zachillhu (1992): the SC invalidated paragraph 7's • House rules provide a petition, notice, evidence and hearing route

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.